

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephen DiFiore	Team: Squad #05	CCRB Case #: 202205982	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 08/12/2022 6:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/12/2024	Precinct: 114
Date/Time CV Reported Tue, 08/30/2022 9:26 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/08/2022 1:40 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Enrico Laurretta	19993	958799	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Avtar Dhanjal	05429	961514	114 PCT
2. PO George Ginnis	22810	969737	114 PCT
3. PO Anthony Riccardi	13105	970134	114 PCT
4. PO Matthew Olsen	18537	970045	114 PCT
5. PO Matthew Antonelli	02740	970389	114 PCT
6. PO Francesco Ventura	04826	969415	114 PCT
7. PO Joseph Ianno	17804	935041	114 PCT
8. SGT Teka Spencer	01970	948190	114 PCT
9. DTS Frank Sarro	03967	954321	ESS 10
10. DTS Andrew Sperber	05038	924519	ESS 10
11. PO Brian Mulcare	31609	970014	114 PCT
12. DTS Bryan Gosik	04140	950523	ESS 10

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Enrico Laurretta	Force: Police Officer Enrico Laurretta used pepper spray against § 87(2)(b)	A . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On August 29, 2022, PO Enrico Laurretta of the 114th Precinct in Queens was assigned to modified duty for numerous force allegations. During an audit of his BWC footage, 114th Precinct Integrity Control Officer Lt. Thomas Jacobs saw an unreported use of force by PO Laurretta. Lt. Jacobs notified the 114th Precinct Executive Officer Capt. Tony Wong. After concluding that PO Laurretta used excessive force, Capt. Wong notified the Internal Affairs Bureau, generating original log § 87(2)(b), which was forwarded to the CCRB on September 8, 2022.

On August 12, 2022, at approximately 6 p.m., PO Laurretta responded to a call of a barricaded emotionally disturbed person, identified as § 87(2)(b) at § 87(2)(b) in Queens. Upon approaching § 87(2)(b) bedroom, PO Laurretta pepper sprayed § 87(2)(b) (**Allegation A: Force, substantiated**). § 87(2)(b) was taken to § 87(2)(b) Hospital without any further law enforcement action. § 87(2)(g), § 87(4-b)

The CCRB obtained comprehensive BWC for this incident (Board Review 01, summarized in Board Review 02-05).

PO Laurretta has since been reassigned to the PSA2 Viper Unit.

Findings and Recommendations

Allegation (A) Force: Police Officer Enrico Laurretta used pepper spray against § 87(2)(b)

As noted above, this case was received from IAB without a civilian complaint. The CCRB identified § 87(2)(b) based on various paperwork but was nonetheless unable to reach him after exhausting all contact attempts. As a result, the investigation proceeded based on the narrative in the IAB log and the below-mentioned BWC footage.

It is undisputed that PO Laurretta went to § 87(2)(b) apartment with other officers in response to a 911 call reporting that § 87(2)(b) was yelling and throwing objects out his window (Board Review 06, page 4). It is further undisputed that officers entered § 87(2)(b) apartment and took him to the hospital.

PO Laurretta's BWC provides a comprehensive view of his interaction with § 87(2)(b) (Board Review 07). At 06:57, PO Laurretta attempts to open the bedroom door where § 87(2)(b) is barricaded. The door is unlocked but is blocked from the other side such that PO Laurretta can only open it a few inches. Upon hearing no response from § 87(2)(b) after asking what he is doing, PO Laurretta draws his pepper spray and says, "Hey, man. Come here. I want to show you something." With his right hand, he sticks his pepper spray cannister into the room through the opening in the door and says, "Where are you buddy? Where are you? Over there?" as he discharges his pepper spray toward the left side of the room. PO Laurretta then immediately closes the door fully, ostensibly to prevent any pepper spray escaping the room.

PO Laurretta did not prepare a TRI report for this incident (See **Allegation B**). However, after discovering the use of pepper spray during the BWC audit, Capt. Wong prepared a TRI containing a narrative of the incident. The TRI notes that PO Laurretta appears to use his pepper spray "in an attempt to overcome the subject's active resistance and force the subject to exit the bedroom" (Board Review 08, page 11). Under the "Member Involved" section of the TRI, Capt. Wong put "Yes" under the section asking "Alleged/Suspected Excessive Force?" (page 10).

PO Laurretta acknowledged in his interview that his use of pepper spray was a poor tactical decision but denied that it was excessive (Board Review 09). As PO Laurretta stood outside § 87(2)(b) bedroom door, § 87(2)(b) threw some objects around his room and rummaged

through others. PO Laurretta heard § 87(2)(b) banging objects but did not remember him banging against the door or making any threats against officers. At the time PO Laurretta used his pepper spray, § 87(2)(b) bedroom door was only open enough that PO Laurretta could have placed his head through it. PO Laurretta only had a limited view of the right side of the bedroom. He did not see § 87(2)(b) on the right side of the bedroom and therefore believed he was somewhere on the left side. His purpose for using pepper spray was to get § 87(2)(b) out of his room so that they could take him to a hospital. Within five seconds of using it, the pepper spray started to affect PO Laurretta's breathing, prompting him to shut § 87(2)(b) bedroom door.

Patrol Guide Procedure 221-07 states that pepper spray is to be used, "only in situations when the uniformed member of the service reasonably believes that it is necessary to:

- a. Gain or maintain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression
- b. Prevent individuals from physically injuring themselves, members of the service, or other persons
- c. Establish physical control of a subject attempting to flee from arrest or custody
- d. Establish physical control of an emotionally disturbed person (EDP)
- e. Control a dangerous animal, by deterring an attack, to prevent injury to persons or animals present."

The Patrol Guide, however, also states, "Do not use O.C. pepper spray on subjects who passively resist ... In addition, avoid using O.C. pepper spray in small contained areas such as automobiles and closets" (emphasis original). The Patrol Guide defines passive resistance as "Minimal physical action to prevent a member from performing their lawful duty. For example, a subject failing to comply with a lawful command and stands motionless and/or a subject going limp when being taken into custody." Upon using pepper spray, members of service are to, "Remove the subject from the contaminated area and expose to fresh air while awaiting the arrival of EMS, or transportation to hospital/stationhouse, if tactically feasible" (Board Review 10).

§ 87(2)(g) neither PO Laurretta's testimony nor his BWC video provide any indication of active resistance or physical aggression. Additionally, PO Laurretta's language at the time he used his pepper spray, specifically saying that he wanted to "show you something," § 87(2)(g)

it is recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).
- PO Laurretta has been a member of service for seven years and has been a subject in six other CCRB complaints and 17 allegations, of which one was substantiated:
 - § 87(2)(g)

